

26STLC03641 26STLC03641

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-09-01

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Case Number: 26STLC03641 Hearing Date: September 1, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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WATER AND POWER COMMUNITY CREDIT UNION,

Plaintiff(s),

vs.

CHRISTOPHER

BAILEY, et al.,

Defendant(s).

Case No.:

26STLC03641

Hearing Date:

September 1, 2026

[TENTATIVE]

ORDER RE: APPLICATION FOR WRIT OF POSSESSION

Plaintiff Water and Power Community Credit Union ("Plaintiff") seeks a writ of possession against defendant Christopher Bailey ("Defendant") to recover a motor vehicle.

The unopposed application is denied.

I.

Background

On June 8, 2022, Defendant entered into a Loan Agreement and Consumer Credit Disclosure Statement ("Contract") with Plaintiff to purchase a motor vehicle. (Singh Decl., ¶ 10, Ex. 1.) Defendant agreed to pay \$426.43 monthly for 83 months beginning September 6, 2022, followed by one payment of \$425.77 on August 6, 2029. (Singh Decl., Ex. 1.) Defendant did not make the September 6, 2025 payment or any other payments after. (Singh Decl., ¶ 14, Ex. 3.)

On May 29, 2026, Plaintiff filed this action against Defendant and also defendant Department of Motor Vehicles ("DMV") for breach of note, claim and delivery, conversion, possession of personal property, and declaratory relief. As to the DMV, Plaintiff asserts only the final cause of action for declaratory relief, and only inasmuch as it seeks removal of Plaintiff as registered owner of the motor vehicle. (See Compl. at 1-2, 6-7.)

On July 17, 2026, Plaintiff filed the instant application for writ of possession.

II.

Applicable Law

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought." (CCP § 512.010(a).)

Pursuant to CCP § 512.010(b), the application must be submitted under oath and include the following:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the application for writ of possession, the defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Id. § 512.030.)

"At the hearing, a writ of possession shall issue if both of the following are found: [¶] (1) The plaintiff has established the probable validity of the plaintiff's claim to possession of the property. [¶] (2) The undertaking requirements of Section 515.010 are satisfied." (Id. § 512.060(a).) "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Id. § 511.090.)

A writ of possession shall not issue unless the plaintiff files an undertaking "in an amount not less than twice the value of the

defendant's interest in the property or in a greater amount." (Id. § 515.010(a).)

Due to the extraordinary nature of pretrial statutory writ remedies, their requirements are ordinarily subject to strict construction. (See *Pacific Decision Sciences Corp. v. Superior Court* (2004) 121 Cal.App.4th 1100, 1106.)

III.

Analysis

As noted above, before the hearing on the application for writ of possession, the defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (CCP § 512.030(a).) Additionally, if the defendant has not appeared in the action, service must be made in the same manner as service of summons and complaint. (CCP §512.030(b).)

While there is a proof of service on file for the DMV, there is no proof of service showing service of the summons and complaint on Defendant. Further, the proof of service filed July 17, 2026 shows that while Plaintiff served Defendant with the application moving papers, it did so only by mail.

As Defendant has not been served with the summons and complaint, nor has he been properly served with notice of the application and hearing, the application must be denied. (CCP § 512.030.)

IV.

Conclusion

The application for writ of possession is DENIED.

Date: September 1, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line

"SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.